

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4092

By: Norwood and **Pae** of the
House

and

Stanley of the Senate

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8
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10 COMMITTEE SUBSTITUTE

11 [988 Mental Health Lifeline - terms - Department of
12 Mental Health and Substance Abuse Services -
13 activities - standards - rules - 988 Trust Fund -
14 purpose - enforcement - codification - effective
15 date]

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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 12-200 of Title 43A, unless
21 there is created a duplication in numbering, reads as follows:

22 As used in this section:

23 1. "911" means any telephone system whereby telephone
24 subscribers may utilize a three-digit number (9-1-1) for reporting

1 an emergency to the appropriate public agency providing law
2 enforcement, fire, medical or other emergency services, including
3 ancillary communications systems and personnel necessary to pass the
4 reported emergency to the appropriate emergency service and which
5 the wireless service provider is required to provide pursuant to the
6 Federal Communications Commission Order 94-102, 961 Federal Register
7 40348;

8 2. "988" means the universal telephone number within the United
9 States designated by the Federal Communications Commission for the
10 purpose of the National Suicide Prevention Lifeline program
11 operating through the 988 Mental Health Lifeline (988 Lifeline), or
12 its successor maintained by the Assistant Secretary for Mental
13 Health and Substance Use under Section 520E-3 of the Public Health
14 Service Act, 42 U.S.C. 290bb-36c;

15 3. "988 Trust Fund" means the 988 Mental Health Lifeline
16 program fund created pursuant to Section 3 of this act;

17 4. "Behavioral health crisis services" are intensive services
18 that are provided to address or prevent behavioral health symptoms,
19 situations, or events that may negatively impact an individual's
20 ability to function within his or her current family or caregiver
21 and living situation, school, workplace, or community. Behavioral
22 health crisis services are for anyone, anywhere, and at any time and
23 can be provided in a variety of settings, including via text or
24

1 telephone, face-to-face at an individual's home, or in the
2 community;

3 5. "Behavioral health crisis system" is an organized set of
4 structures, processes, and services in place to meet all types of
5 urgent and emerging mental health and substance use needs in a
6 defined population or community, effectively and efficiently.

7 Essential elements of a behavioral health crisis system include 988
8 crisis lines that accept all calls and texts, and provide support
9 and referrals based on the needs of the individual or family member
10 or caregiver; mobile crisis teams that respond to the location of
11 need in the community; and crisis stabilization facilities that
12 serve everyone who enters its doors from all referral sources.

13 Comprehensive behavioral health crisis systems:

- 14 a. address recovery needs, significant use of peers, and
15 trauma-informed care,
- 16 b. ensure safety and security for staff and those in
17 crisis, and
- 18 c. involve collaboration with law enforcement and
19 emergency medical services;

20 6. "Certified community behavioral health clinics (CCBHC)" are
21 facilities as defined under Section 1913(c) of the Public Health
22 Services Act or Section 223(d) of the Protecting Access to Medicare
23 Act of 2014 (PAMA). CCBHC's are also certified by the Department of
24 Mental Health and Substance Abuse Services;

1 7. "Co-response" is a collaborative approach to behavioral
2 health crisis developed in response to the need for local adaptation
3 in which first responders, sometimes including law enforcement
4 officers, are partnered with behavioral health professionals as an
5 effective way to respond to behavioral health crises and other
6 situations involving unmet behavioral health needs;

7 8. "Crisis stabilization services" reflect a range of models
8 and care to support individuals through emergent and urgent
9 behavioral health needs. Crisis stabilization services involve
10 facility-, home-, and community-based services that provide access
11 to care and stabilization for adults and youth in crisis. Crisis
12 stabilization services are delivered across a continuum of care that
13 includes no barrier, low barrier, and referral-based services;

14 9. "Mobile crisis team" means a multidisciplinary behavioral
15 health team that includes at least one behavioral health care
16 professional who is capable of conducting an assessment of the
17 individual, in accordance with the professional's permitted scope of
18 practice under state law, and other professionals or
19 paraprofessionals with appropriate expertise in behavioral health or
20 mental health crisis response, including nurses, social workers,
21 peer support specialists, and others, whose members are trained in
22 trauma-informed care, de-escalation strategies, and harm reduction;
23 that is able to respond in a timely manner and, where appropriate,
24 provide screening and assessment; stabilization and de-escalation;

1 and coordination with, and referrals to, health, social, and other
2 services and supports as needed; that maintains relationships with
3 relevant community partners, including medical and behavioral; and

4 10. "Urgent Recovery Center" is an ambulatory setting that
5 offers safe and time-limited services and supports to individuals
6 experiencing behavioral health crisis. This setting is an
7 alternative to the use of hospital emergency departments or more
8 intensive crisis services.

9 SECTION 2. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 12-201 of Title 43A, unless
11 there is created a duplication in numbering, reads as follows:

12 A. The State of Oklahoma shall designate the Department of
13 Mental Health and Substance Abuse Services to have primary oversight
14 over the suicide prevention and crisis service activities and
15 essential coordination with designated 988 Lifeline Crisis Centers
16 to provide crisis intervention services and crisis care coordination
17 to individuals accessing the 988 Mental Health Lifeline program from
18 any jurisdiction within Oklahoma twenty-four (24) hours a day, seven
19 (7) days a week.

20 B. The Oklahoma Department of Mental Health and Substance Abuse
21 Services (ODMHSAS) shall have primary oversight of suicide
22 prevention and crisis service activities.

1 C. The designated 988 Lifeline Crisis Centers shall meet 988
2 Lifeline Program requirements and best practices guidelines for
3 operational, performance and clinical standards.

4 D. The ODMHSAS shall use its authority to promulgate rules and
5 regulations to allow appropriate information sharing and
6 communication between and across crisis and emergency response
7 systems for the purpose of real-time crisis care coordination
8 including, but not limited to, deployment of crisis and outgoing
9 services and linked, flexible services specific to crisis response.

10 E. The state or related public health authority shall assure
11 active collaborations and coordination of service linkages between
12 the designated centers and crisis receiving and stabilization
13 services for individuals accessing the 988 Lifeline through
14 appropriate information sharing regarding availability of services.

15 F. The state or related public health authority and designated
16 988 Lifeline Crisis Centers shall utilize technology to enhance
17 communication and coordination in the delivery of behavioral health
18 crisis services, and for data collection, analysis and sharing.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 12-202 of Title 43A, unless
21 there is created a duplication in numbering, reads as follows:

22 The State of Oklahoma shall establish a statewide 988 Trust Fund
23 for the following purposes:
24

1 1. To create and maintain a statewide 988 Lifeline system
2 pursuant to the National Suicide Hotline Designation Act of 2020,
3 the Federal Communication Commission's rules adopted July 16, 2020,
4 and October 17, 2024, and the National Guidelines For A Behavioral
5 Health Coordinated System Of Crisis Care;

6 2. To support or enhance 988 services, including state
7 designated 988 Lifeline Crisis Centers, and mobile crisis, co-
8 response and outreach services in specified circumstances;

9 3. The fund shall consist of:

- 10 a. appropriations made by the Legislature,
- 11 b. available federal funding that has been allocated by
12 the state for the purposes of 988 Lifeline
13 implementation,
- 14 c. grants and gifts intended for deposit in the fund,
- 15 d. interest, premiums, gains, or other earnings of the
16 fund, and
- 17 e. monies from any other source deposited in or
18 transferred to the fund;

19 4. The fund shall be created and administered by the Department
20 of Mental Health and Substance Abuse Services and money in the fund
21 shall be expended to offset costs that are or can be reasonably
22 attributed to:

- 23 a. implementing, maintaining, and improving the 988
24 Mental Health Lifeline including staffing and

1 technological infrastructure enhancements necessary to
2 achieve operational and clinical standards and best
3 practices set forth by the state, the Department of
4 Mental Health and Substance Abuse Services, or 988
5 Lifeline administrator,

6 b. provision of acute behavioral health, crisis outreach,
7 and receiving and stabilization services by directly
8 responding to the 988 Mental Health Lifeline, or

9 c. personnel for the 988 Mental Health Lifeline centers;

10 5. Money in the fund:

11 a. does not revert at the end of any state fiscal year
12 and shall remain available for the purposes of the
13 fund in subsequent state fiscal years,

14 b. is not subject to transfer to any other fund or to
15 transfer, assignment, or reassignment for any other
16 use or purpose outside of those specified in this
17 section,

18 c. is continuously appropriated for the purposes of the
19 fund,

20 d. to the extent that the 988 Mental Health Lifeline
21 centers are fully funded, the expansion and ongoing
22 funding of mobile crisis teams, co-response, and
23 outreach teams,

e. to the extent that the 988 Mental Health Lifeline centers and the mobile crisis teams are fully funded, remaining revenues in the Trust Fund shall be used for a variety of crisis receiving and stabilization services, including services provided by:

- (1) crisis stabilization settings,
- (2) residential settings,
- (3) additional behavioral health stabilization services and supports, and

f. mobile crisis teams shall operate in compliance with rules adopted by relevant agencies.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12-203 of Title 43A, unless there is created a duplication in numbering, reads as follows:

The State of Oklahoma shall implement strategies to ensure that the behavioral health crisis service system is adequately funded, including mechanisms for reimbursement of behavioral health crisis response, but not limited to:

1. Ensuring that to the extent available any necessary federal approvals are obtained and federal financial participation is available and is not otherwise jeopardized, seeking to maximize all available federal funding sources for the purposes of behavioral health crisis services and administrative activities related to 988 implementation, including:

- a. federal Medicaid reimbursement for services,
- b. federal Medicaid reimbursement for administrative expenses, including the development and maintenance of information technology; and supporting implementation of the behavioral health crisis continuum through Medicaid and the Children's Health Insurance Program (CHIP) through Section 5124 of the Consolidated Appropriations Act of 2023 (CAA, 2023), and
- c. federal grants;

2. Exercising the full authority of the Oklahoma Insurance Department and Oklahoma Health Care Authority to verify reimbursement to certified community behavioral health clinics and state-operated urgent recovery centers and crisis stabilization units for medically necessary behavioral health crisis services, like mobile crisis response and crisis stabilization services, by health care service plans and disability insurers, and consistent with the requirements of the federal Mental Health Parity and Addiction Equity Act of 2008 in accordance with the amendments made to the law in 2021, and pursuant to the No Surprises Act and its implementing regulations.

SECTION 5. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated 03/05/2026 - DO PASS, As Amended and Coauthored.